

(c) To restrict or refuse acceptance of any goods at or to any station.

Sub-clause (2) provides that an order under sub-clause (1) shall be in force for one year and may be renewed for a period not exceeding one year at a time.

72. Maximum carrying capacity for wagons and trucks.- (1) The gross weight of every wagon or truck bearing on the axles when the wagon or truck is loaded to its maximum carrying capacity shall not exceed such limit as may be fixed by the Central Government for the class of axle under the wagon or truck.

(2) Subject to the limit fixed under sub-section 91) every railway administration shall determine the normal carrying capacity for every wagon or truck in its possession and shall exhibit in words and figures the normal carrying capacity so determined in a conspicuous manner on the outside of every such wagon or truck.

(3) Every person owning a wagon or truck which passes over a railway shall determine and exhibit the normal carrying capacity for the wagon or truck in the manner specified in sub-section.

(4) Notwithstanding anything contained in sub-section (2) or sub-section (3), where a railway administration considers it necessary or expedient so to do in respect of any wagon or truck carrying any specified class of goods or any class of wagons or trucks of any specified type, it may vary the normal carrying capacity for such wagon or truck or such class of wagons or trucks and subject to such conditions as it may think fit to impose, determine for the wagon or truck or class of wagons or trucks such carrying capacity as may be specified in the notification and it shall not be necessary to exhibit the words and figures representing the carrying capacity so determined on the outside of such wagon or truck or such class of wagons or trucks.

Comment

Section 72 empowers the Central Government to fix the maximum carrying capacity of a wagon or truck.

73. Punitive charge for over-loading a wagon.- Where a person loads goods in a wagon beyond its permissible carrying capacity as exhibited under sub-section (2) or sub-section (3), or notified under sub-section (4) of Sec. 72 a railway administration may, in addition to the freight and other charges, recover from the consignor, the consignee or the endorsee, as the case may be, charges by way of penalty at such rates, as may be prescribed, before the delivery of the goods:

Provided that it shall be lawful for the railway administration to unload the goods loaded beyond the capacity of the wagon, if detected at the

forwarding station or at any place before the destination station and to recover the cost of such unloading and any charge for the detention of any wagon on this account.

Comment

Section 73 provides for levy of punitive charges for overloading a wagon.

Penal Provision.- It is to be construed rigidly.

74. Passing of property in the goods covered by railway receipt.- The property in the consignment covered by a railway receipt shall to the consignee of the endorsee, as the case may be, on the delivery of such railway receipt to him and he shall have all the rights and liabilities of the consignor.

Comment

Section 74 provides for passing of property in the consignment covered by a railway receipt.

75. Section 74 not to affect right of stoppage in transit or claims for freight.- Nothing contained in Sec. 74 shall prejudice or affect-

- (a) any right of the consignor for stoppage of goods in transit as an unpaid vendor (as defined under the Sale of Goods Act, 1930 (3) of 1930) on his written request to the railway administration;
- (b) any right of the railway to claim freight from the consignor; or
- (c) any liability of the consignee or the endorsee, referred to in that section by reason of his being such consignee or endorsee.

Comment

Section 75 lays down the right of stoppage in transit by consignor as an unpaid vendor and right of railway administration for unpaid freight.

76. Surrender of railway receipt.- The railway administration shall deliver the consignment under a railway receipt on the surrender of such railway receipt

Provided that in case the railway receipt is not forthcoming, the consignment may be delivered to the person, entitled in the opinion of the railway administration to receive the goods, in such manner as may be prescribed.